

STATE OF NORTH CAROLINA

File No.

Scan No.(s)

County

In The General Court Of Justice

☐ District

☐ Superior Court Division

NOTE: This petition, which is filed by the district attorney, does not require the payment of a filing fee.

STATE VERSUS

Name And Address Of Defendant (type or print full name)

Drivers License No.

State

Race

Sex

Date Of Birth

Full Social Security No.

Age At Time Of Offense

DISTRICT ATTORNEY PETITION
AND ORDER OF EXPUNCTION
UNDER G.S. 15A-146(a2)
(NOT GUILTY OR NOT RESPONSIBLE)

G.S. 15A-146, 15A-150

NOTE TO DISTRICT ATTORNEY: List the arresting agency and any State or local government agency that has a record of the defendant's case. You must provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.

Name And Address Of Arresting Agency

Name And Address Of Other Agency (if any)

Name And Address Of Other Agency (if any)

☐ Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. (attach form)

File No.(s)

Date Of Arrest

Offense Description

Date Of Offense

Disposition

Date Of Disposition

PETITION TO EXPUNGE

I hereby petition for an expunction pursuant to G.S. 15A-146(a) and certify as follows:

1. In this court of the county named above, the defendant was charged with (a) misdemeanor(s) or felony(ies) (or an infraction under G.S. 18B-302(i) prior to December 1, 1999), the file number(s) of which is/are set out above.

2. The charge(s) listed above was/were disposed of by a finding of not guilty or finding of not responsible.

3. All related charges have reached final disposition.

☐ 4. There is a civil revocation record that resulted from the offense(s) I am seeking to expunge.

I certify that this petition has been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court.

Date

District Attorney Name (type or print)

Signature

(Over)

AOC-CR-296, Rev. 3/25

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Date

District Attorney Name (type or print)

Signature

(Over)

AOC-CR-296, Rev. 3/25

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FINDINGS OF FACT																																			
The Court makes the following findings of fact: - The defendant was charged with those offenses indicated on Side One. - Said charges were disposed of as indicated in the Petition on Side One. - All related charges have reached final disposition. ☐ There is a civil revocation record that resulted from the offense(s) the petitioner is seeking to expunge. - The defendant ☐ is ☐ is not eligible for an expunction of the offense(s) listed on Side One. If not eligible, it is because:																																			
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Therefore, the Court hereby ORDERS: ☐ 1. The petition is granted. It is ordered that any and all entries relating to the defendant's apprehension, charge, trial, or conviction and any civil revocation of his/her drivers license resulting from the criminal charge shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge, conviction, if any, and any civil revocation of his/her drivers license resulting from the criminal charge. No agency shall expunge a record of a civil revocation entered pursuant to G.S. 20-16.2, no agency shall expunge a record of a civil revocation prior to the final disposition of any pending civil or criminal charge based upon the civil revocation, and the Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151. ☐ 2. For the reason(s) identified in Finding No. 5, the petition is denied. NOTE TO CLERK: <i>If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report. If granted, send a certified copy of this Order to the defendant at the address listed on Side One or an updated address as provided by the petitioner.</i> <table><tr><td>Date</td><td colspan="2">Name Of Presiding Judge (type or print)</td><td>Signature Of Presiding Judge</td></tr></table> <tr><td colspan="4">CERTIFICATION BY CLERK</td></tr> <tr><td colspan="4"> I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the defendant, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition. </td></tr> <tr><td>Date</td><td>Name (type or print)</td><td>Signature Of Clerk</td><td> ☐ Dep. CSC ☐ Asst. 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